

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 952

Introduced by Dorn, 30.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to courts; to amend sections 29-3921, 43-3701,
2 43-3717, and 43-3718, Reissue Revised Statutes of Nebraska, and
3 section 24-209, Revised Statutes Cumulative Supplement, 2024; to
4 create a fund and terminate funds and a section; to eliminate
5 obsolete provisions relating to transfers, funds, grants, and
6 reports; to harmonize provisions; to provide an operative date; to
7 repeal the original sections; to outright repeal sections 43-3719
8 and 43-3720, Reissue Revised Statutes of Nebraska; and to declare an
9 emergency.
- 10 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** The Supreme Court Operations Cash Fund is created. The
2 State Court Administrator shall administer the fund. The fund shall be
3 used for court and probation programs that enhance the administration of
4 justice and improve community safety. The fund shall consist of fees,
5 grants, donations, gifts, and payments received pursuant to contractual
6 agreements with political subdivisions for court services. Any money in
7 the fund available for investment shall be invested by the state
8 investment officer pursuant to the Nebraska Capital Expansion Act and the
9 Nebraska State Funds Investment Act.

10 **Sec. 2.** Section 24-209, Revised Statutes Cumulative Supplement,
11 2024, is amended to read:

12 24-209 (1) The Nebraska Appellate Courts Online Library shall be the
13 repository for the published judicial opinions of the Supreme Court and
14 the Court of Appeals which have been designated for permanent
15 publication. All previous official bound and printed volumes of the
16 appellate courts' opinions shall be made available on the Nebraska
17 Appellate Courts Online Library. Other distribution of such electronic
18 opinions shall be as directed by the Supreme Court.

19 ~~(2) As directed by the Supreme Court, extra circulating copies of~~
20 ~~previously printed volumes or issues of the Nebraska Reports, Nebraska~~
21 ~~Appellate Reports, Nebraska Advance Sheets, and Decisions of the Nebraska~~
22 ~~Court of Appeals may be sold as prescribed by the Supreme Court. The~~
23 ~~money received from such sales shall be paid into the Supreme Court~~
24 ~~Reports Cash Fund which is hereby created. The fund terminates on the~~
25 ~~operative date of this act, and the State Treasurer shall transfer any~~
26 ~~money in the fund on such date to the General Fund.~~

27 **Sec. 3.** Section 29-3921, Reissue Revised Statutes of Nebraska, is
28 amended to read:

29 29-3921 ~~(1)~~The Commission on Public Advocacy Operations Cash Fund
30 is created. The fund shall be used for the operations of the commission ,
31 ~~except that transfers may be made from the fund to the General Fund at~~

1 ~~the direction of the Legislature through June 30, 2011. The Commission on~~
2 ~~Public Advocacy Operations Cash Fund shall consist of money remitted~~
3 ~~pursuant to section 33-156. It is the intent of the Legislature that the~~
4 ~~commission shall be funded solely from the fund. Any money in the fund~~
5 ~~available for investment shall be invested by the state investment~~
6 ~~officer pursuant to the Nebraska Capital Expansion Act and the Nebraska~~
7 ~~State Funds Investment Act.~~

8 ~~(2) On July 1, 2011, or as soon thereafter as administratively~~
9 ~~possible, the State Treasurer shall transfer one hundred thousand dollars~~
10 ~~from the Commission on Public Advocacy Operations Cash Fund to the~~
11 ~~Supreme Court Education Fund. The State Court Administrator shall use~~
12 ~~these funds to assist the juvenile justice system in providing prefiling~~
13 ~~and diversion programming designed to reduce excessive absenteeism and~~
14 ~~unnecessary involvement with the juvenile justice system.~~

15 ~~(3) The State Treasurer shall transfer the following amounts from~~
16 ~~the Commission on Public Advocacy Operations Cash Fund to the Court~~
17 ~~Appointed Special Advocate Fund:~~

18 ~~(a) On July 1, 2011, or as soon thereafter as administratively~~
19 ~~possible, one hundred thousand dollars; and~~

20 ~~(b) On July 1, 2012, or as soon thereafter as administratively~~
21 ~~possible, two hundred thousand dollars.~~

22 ~~(4) On July 1, 2012, or as soon thereafter as administratively~~
23 ~~possible, the State Treasurer shall transfer sixty thousand dollars from~~
24 ~~the Commission on Public Advocacy Operations Cash Fund to the Nebraska~~
25 ~~State Patrol Cash Fund.~~

26 ~~The Nebraska State Patrol shall use such funds to contract with the~~
27 ~~University of Nebraska to study sex offender recidivism data before and~~
28 ~~after the passage of Laws 2009, LB285, which changed the Nebraska sex~~
29 ~~offender classification system from an evaluation of risk assessment~~
30 ~~system to an offense-based assessment system in the attempt by the state~~
31 ~~to comply with federal requirements under the Adam Walsh Child Protection~~

1 ~~and Safety Act of 2006.~~

2 **Sec. 4.** Section 43-3701, Reissue Revised Statutes of Nebraska, is
3 amended to read:

4 43-3701 Sections 43-3701 to 43-3718 ~~43-3720~~ shall be known and may
5 be cited as the Court Appointed Special Advocate Act.

6 **Sec. 5.** Section 43-3717, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 43-3717 The Legislature finds and declares that:

9 (1) The safety and well-being of abused and neglected children
10 throughout the State of Nebraska should be of paramount concern to the
11 state and its residents;

12 (2) Court appointed special advocate volunteers provide a unique and
13 vital service to the children they represent and work to ensure the
14 safety and well-being of abused and neglected children; and

15 (3) Court appointed special advocate volunteers have provided, in
16 many cases, the judges who adjudicate cases with essential information
17 that has not only ensured the safety and well-being of abused and
18 neglected children throughout Nebraska, but has also saved the state
19 thousands of dollars. ~~÷ and~~

20 ~~(4) Providing resources through a grant program will increase the~~
21 ~~savings to the state through court appointed special advocate programs.~~

22 **Sec. 6.** Section 43-3718, Reissue Revised Statutes of Nebraska, is
23 amended to read:

24 43-3718 The Court Appointed Special Advocate Fund is created. The
25 fund terminates on the operative date of this act, and the State
26 Treasurer shall transfer any money in the fund on such date to the
27 General Fund. This section terminates on January 1, 2027. The fund shall
28 be under the control of the Supreme Court and administered by the State
29 Court Administrator. The fund shall be used for grants as provided in
30 section 43-3719. The fund shall consist of transfers, grants, donations,
31 gifts, devises, and bequests. Any money in the fund available for

1 ~~investment shall be invested by the state investment officer pursuant to~~
2 ~~the Nebraska Capital Expansion Act and the Nebraska State Funds~~
3 ~~Investment Act. Interest earned shall be credited back to the fund.~~

4 **Sec. 7.** This act becomes operative on July 1, 2026.

5 **Sec. 8.** Original sections 29-3921, 43-3701, 43-3717, and 43-3718,
6 Reissue Revised Statutes of Nebraska, and section 24-209, Revised
7 Statutes Cumulative Supplement, 2024, are repealed.

8 **Sec. 9.** The following sections are outright repealed: Sections
9 43-3719 and 43-3720, Reissue Revised Statutes of Nebraska.

10 **Sec. 10.** Since an emergency exists, this act takes effect when
11 passed and approved according to law.